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In pro per, as Trustee of the JUDY BRAKEBILL JONES 2008 REVOCABLE TRUST, and as Executor of the ESTATE OF JUDY LEE BRAKEBILL JONES LASHER, Deceased,

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

IN RE THE ESTATE OF JUDY [SURNMAE]	**CASE NO. [NOT YET ASSIGNED]** **EX PARTE APPLICATION REQUESTING COURT ISSUE A TEMPORARY RESTRAINING ORDER AGAINST DEFENDANT BENEFICIARY** **Date: NA** **Time: NA** **Dept.: Probate** **Action Filed: November 17, 2025** **Reservation ID: NA**

1.

DATED: _____, 2023

Respectfully submitted,

LAW OFFICE OF DAVID W. TATE

By: _____
DAVID W. TATE, ESQ.
Attorneys for all Respondents and Moving Parties

I, Eric B. Jones, declare as follows:

1. I am the Petitioner and the sole successor Trustee of the Judy Brakebill Jones 2008 Revocable Trust ("the Trust"). I have personal knowledge of the facts stated herein, and if called as a witness, I could and would competently testify thereto.

2. The Trustor, Judy Lee Brakebill Jones Lasher, died on April 4, 2025. Pursuant to the express terms of the Trust instrument, a true and correct copy of which is attached as **Exhibit A**, I immediately succeeded as the sole Trustee upon her death.

3. After I assumed the role of Trustee, on or about May 22, 2025, Respondents, without my knowledge or consent, sold a Trust-owned 2011 Mercedes-Benz C300, which was an asset of the Trust.

4. Respondents then took the cash proceeds from that unauthorized sale, in the amount of $10,650.00, and deposited them directly into the personal Chase Bank account (ending in 9872) of Respondent Gary William Jones, who is not a beneficiary of the Trust. **Exhibit B is a true and correct copy of the deposit slip showing the $10,650 deposit into Gary William Jones's Chase Bank account ending in 9872 on May 22, 2025, which I obtained from my sister Shay Labadidi (Gretchen Jones) via email communication dated May 24, 2025.**

5. On June 27, 2025, counsel for Respondent Heidi Blanchard, Albert J. Nicora, sent a letter that expressly admitted to the sale of the vehicle. A true and correct copy of this admission is attached as **Exhibit C**.

6. Respondents have refused to surrender the decedent's original Apple iPhone. Instead, they provided a "decoy phone" while retaining the original device. **Exhibit D** consists of true and correct copies of text messages between Respondents in which they discuss the need for Judy's "real phone," demonstrating their active and willful concealment of this digital asset.

7. I am informed and believe that the funds in the Chase account are at immediate risk of dissipation and that the data on the concealed iPhone is at immediate risk of spoliation or destruction. Respondents' pattern of conduct demonstrates they will not preserve these assets absent a court order.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on November 16, 2025, at Temple City, California.